



FINAL STATUTORY CLARIFICATION: Private Resolution Path vs. Commencement of Statutory Siege

1 message

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Wed, 15 Apr 2026 at 15:43

Dear Ms. Barker,

Further to my communication of 13:18 today, I hereby provide the final "Private Resolution Path" to resolve the statutory deadlock before the 13:24 deadline on 16 April 2026.

To facilitate a settlement that protects the membership and the scheme's solvency, the Board must ratify the following quantified schedule by the aforementioned deadline:

As per Annexure A (previously served), the Board must issue a formal resolution to downgrade the 2026 contribution hike from 9.5% to a maximum of 5%. This correction remediates the "Governance Tax" currently backfilling internal IT wastage and the R180 million daily clinical leakage.

Based on a Cost-to-Company (CTC) of R42,796.13 per month, my restitution for documented occupational detriment is quantified as follows:

- Direct Restitution: R1,027,107.12 (24 months back-pay/substitution).
- Property Loss: R145,000.00 (Total loss of fixed property resulting from detriment).
- Professional Death Compensation: R5,135,535.60 (10-year compensatory future loss of earnings).
- Clinical Provision: R750,000 (10-year specialist psychosocial/clinical care fund).
- Statutory Costs: R250,000 (Forensic audit and Ethic Hawks operational expenses).
- Total Settlement Value: R7,307,642.72

The Board is required to apply for a formal SARS Tax Directive for the total settlement under the category of "Compensation for Occupational Detriment." The Board shall provide a full tax indemnity to ensure the net amount is protected and structured as a capital settlement for damages.

Be advised that the invitations for the Liaison sessions have been formally issued to the leadership of the PSA, NEHAWU, DENOSA, and POPCRU. The Board has until 13:24 tomorrow to decide the outcome:

11:30 AM Liaison: Activation of Mandamus against SANC, DEL, and CMS.

<https://teams.live.com/join/9317804058155?p=3OxPhtrj39zfQYDWqY>

13:30 PM Outcome (The Disclosure or The Deal):

<https://teams.live.com/join/9392336908714?p=ihT4rLnWK7HyYFInds>

Scenario A (Settlement): 13:30 serves as a Victory Briefing for the 5% Member Deal. The Mahlangu RCA remains a private internal matter.

Scenario B (The Siege): 13:30 triggers the Full Forensic Disclosure of the R180 million daily leakage to Union legal teams for an immediate High Court Interdict.

The window for a private resolution closes at 13:24 tomorrow. I remain finished with silence.

Yours Professionally,

Sr. Wilbur W Matthee

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